

Public Policy Memo

To: Judd Choate - Office of the Colorado Secretary of State
From: Michael L. Raisch, CPA
Date: April 20, 2026
Re: Improving Voter Confidence in Election Audits

Policy Purpose

In a representative democracy the will of the people is expressed at the ballot box, and these elections are the means with which our representatives are chosen to conduct the voters' wishes. A healthy democracy requires widespread trust in elections. "Election audits that examine voted ballots provide direct evidence that the people who take office and the ballot measures enacted were in fact chosen by the voters¹." Unfortunately, today there is a growing distrust in election processes and results. The reaction has been to audit elections, but this is only effective if done correctly and based on evidence. The challenge here is to come up with a policy for election audits that is both effective (having a positive impact on voter sentiment) and efficient (able to be done by overworked election professionals who are constrained by limited budgets).

Background

The Colorado legislature had the wisdom to require election audits, as they recognized that auditing of election results is necessary to ensure effective election administration and public confidence. They required the use of risk-limiting audits (RLAs) after primary, general, coordinated, recall, and congressional vacancy elections².

At that time, they selected the Office of the Secretary of State (SoS) to oversee and make policy decisions about the audits because that office had the most election expertise. The SoS issues rules as to how elections are managed from voter registration through certification of results and recounts, and everything in between.

The legislature also provided a structure for oversight of the election process when they mandated the use of canvass boards³. At the time canvass boards were created, the majority of voters were registered as either Democrats or Republicans. The law required canvass board members to belong to one of those parties. Having an even number of Democrats and Republicans gave the process added legitimacy.

Until recently, the audit and canvass boards did not have timely and direct access to the cast vote record, which is the file reporting the votes cast on all accepted ballots processed in the election. The SoS has recently relaxed this long-standing view and now appears to be allowing access to this file during the audit. The ability of audit and canvass boards to access the redacted CVR at the time of the RLA has added substantial transparency to election audits. When proper procedures are put into place to use this data, this change will add considerably to voter confidence.

While the SoS issues all rules regarding elections and audits of elections, it does not engage in the heavy lifting of audit processes done at the county level. For that reason, the suggested changes in this policy should not have significant budget impacts on it.

Key Findings

Election officials at both the state and county level do a remarkable job of running our elections under considerable pressure, and they should be congratulated for doing so. It is understandable that when the public questions the results of elections, the human reaction from election officials is to respond in defense of their election process. However, a much more meaningful defense would come not from election officials themselves, but from an independent party – a party that is not involved anywhere in managing the election process. This is why audits everywhere have **independence** as one of their foundational principles.

The Center for Audit Quality has said “Independence is not just a compliance exercise it is foundational to audit quality. Receiving assurance from an independent third party with relevant expertise, objectivity, and integrity has long been a pillar that provides confidence in public company-reported financial information⁴.” While their comments address financial audits, I believe that trust in elections is just as important as trust in our financial institutions.

Colorado has done a lot of work in building an election audit framework. This excellent work should be preserved. Current rules require a ballot manifest independent of the voting system, sealed ballot containers, documented uninterrupted chain of custody, bipartisan audit boards, canvass-board observation, public random-seed generation, publication of target contests, and rules to escalate to additional audit rounds or a full hand count when the risk limit is not satisfied. The State’s Audit Center also publishes manifests, hash values, reports, and discrepancy information. Any reform should preserve and build upon the existing transparency and control features.

Colorado should strengthen audit governance so that key audit decisions are independent from the officials primarily responsible for conducting the election or maintaining voter registration records. Current rules place operational responsibility for the risk-limiting audit on the designated election official – the SoS. The SoS, sometimes with input from the county election officials, makes significant decisions for the audits including setting the risk limits, selecting target contests, and determining the rules governing how the audit is to be performed. These decisions directly determine the audit work to be done and should not be made by the people running the elections. Allowing election officials to make these decisions produces at least the appearance of a conflict of interest and undermines public confidence in the election results.

Building on the baseline of audit processes built over the years, the State should strengthen its election-audit framework so that it not only confirms outcomes, but also identifies weaknesses (as well as strengths), improves controls, and gives voters objective

evidence that not only the election results are correct, but informs the public on how well the election office is being managed. This is generally done in the form of a **management report**. Such a report is not currently being produced.

The Federal Election Advisory Commission (EAC) is currently undertaking a project to produce recommended audit standards for elections. Colorado has highly qualified representatives as members of this working group and should endeavor to make sure the standards provide a requirement for auditor independence.

The Colorado Office of the State Auditor is experienced in directly performing audits as well as reviewing audit recommendations made by contracted CPA firms. They are experts in all kinds of audits, including operational and performance audits. One could argue that the most important audit in the State of Colorado is the audit of our elections, and the entity that has the most audit expertise in the government has no involvement with them.

Recommendations

Voter confidence in elections would be increased and the tensions resulting from dropping confidence would be decreased by the following changes:

1. Colorado should place the audit oversight in the hands of a yet to be formed independent audit committee. This committee should establish an advisory committee to include representatives from the office of the State Auditor, office of the SoS, county clerk association, political parties, statisticians, CPA auditors, election consultants, and members of the public.
2. All Colorado election audits should be governed by clear, high-level principles of election audit standards. A good start for this committee would be to consider the election audit standards being issued by the EAC and use them as a starting point as they define the process to best meet the needs of the State of Colorado. This principle-based approach should be aimed at producing an audit strong enough to meet public expectations and professional standards, while being practical enough to meet the time and financial constraints associated with elections.
3. SoS currently has issued Rule 25, which is the main rule that governs election audits. I would recommend that the Election Audit Commission initially adopt this rule, remove it from the SoS and make necessary modifications to it over time. All other election rules will remain the authority of SoS.
4. The Audit Center website should be managed by the Election Audit Commission for maintenance and publishing of audit-related matters.

Conclusions

I believe these recommendations, if adopted to encourage collaboration between the SoS and State Auditor during an orderly transition period, would increase public confidence in elections, make for efficient use of state funds, and create a stronger democracy.

Work Cited

1. Garland et al, *Principles and Best Practices for Post-Election Tabulation Audits*,
[/https://www.amstat.org/docs/default-source/amstat-documents/audit-principles-and-best-practices-2018.pdf](https://www.amstat.org/docs/default-source/amstat-documents/audit-principles-and-best-practices-2018.pdf)
2. Colorado Revised Statute 1-7-515.
3. Colorado Revised Statute 1-10-101.
4. The Center for Audit Quality; a non-partisan, non-profit organization dedicated to enhancing investor confidence and public trust in financial markets through quality audits; <https://www.thecaq.org/independence>